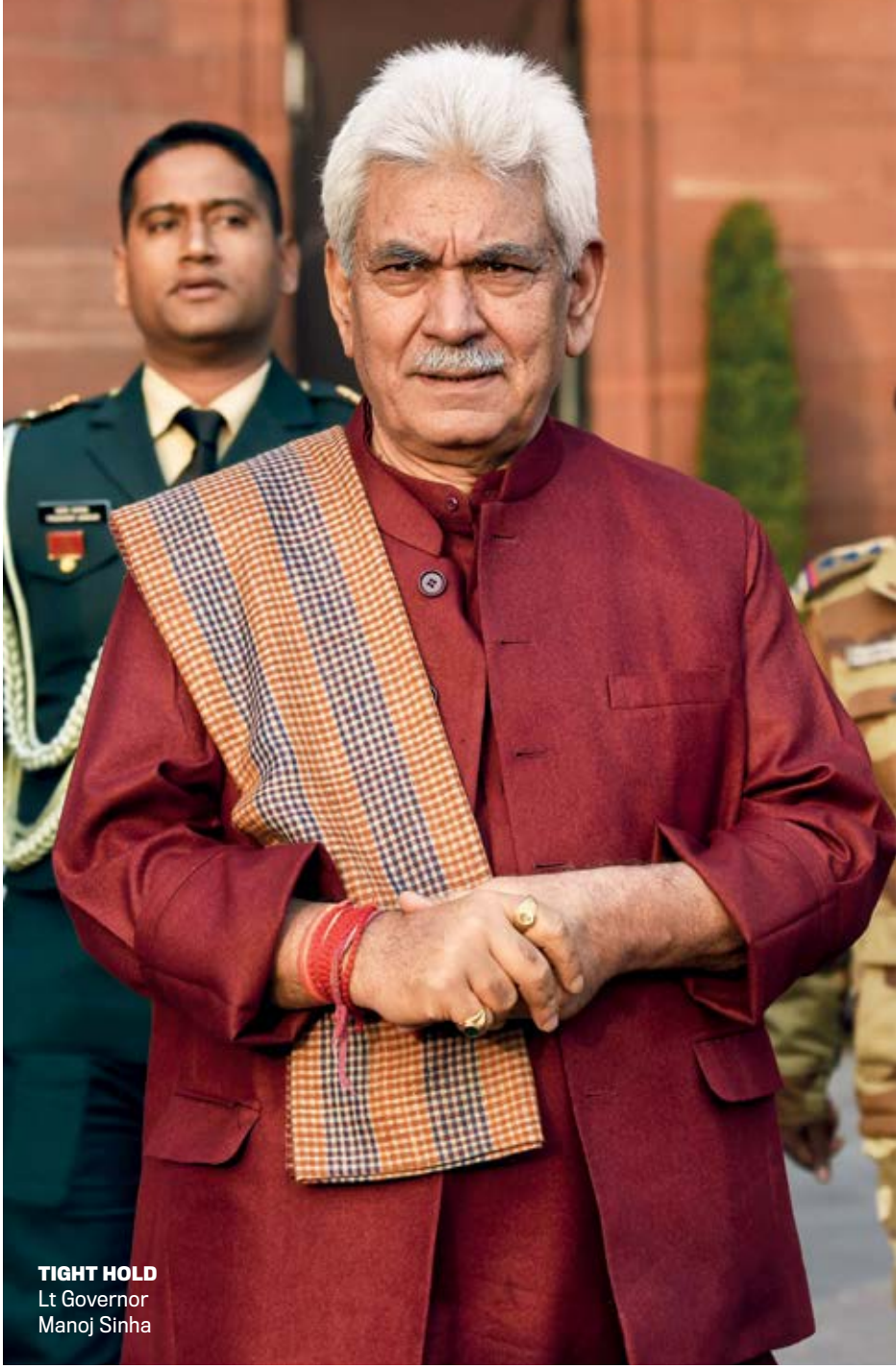


TIGHT HOLD
Lt Governor Manoj Sinha

ANI

J&K

A PRE-POLL UNDERCUT

By Moazum Mohammad

The Centre has widened the powers of the Lieutenant-Governor (L-G) in Jammu and Kashmir, empowering the incumbent in matters that earlier needed concurrence from the state finance department. This came through changes in the 'transaction of business' rules that increases the L-G's powers over key administrative and legal matters and will come into effect once an elected government is in place. These include decisions on public order as well as on transfers and postings of all-India service officers (IAS/IPS), the J&K Police and the appointment of judicial officers, including the advocate-general. A gubernatorial sanction—and veto—will also loom large over the anti-graft body, prisons and even the prosecution/filing of appeals. Central government sources too claimed that these were not 'amendments' to the controversial J&K Reorganisation Act, 2019, and was issued to avoid all ambiguities. The chief concern, experts say, was to ensure that posting of officers of the all-India cadre—including the police—was controlled by the Centre in the event of an elected government, and later statehood, being restored to J&K.

On July 12, a notification issued by the Union home ministry said President Droupadi Murmu had made changes under Section 55 of the Act, introducing three new 'amendments' to widen the ambit of the L-G's powers. This is the second instance of such changes since the Act came into being after the erstwhile state was divested of its special status under Article 370 and bifurcated into Union territories. Earlier, the power to appoint the J&K home secretary, a key person in the administration, was vested with the state government. That had changed on February 28, when Clause B of Sub-Rule 3 of Rule 50 of the Act, which called on the L-G to make a 'prior reference' to the Union home ministry on the appointment of the chief secretary and the J&K director-general of police (DGP), was amended through a notification to allow the Centre's nod in the appoint-